

Gyan Chand Bind v. State of U.P. through Collector/D.M.

High Court of Judicature at Allahabad · Division Bench · 6 February 2020 · WRIT - C No. 4257 of 2020 · **Writ disposed; petitioner to object to provisional assessment; recovery stayed pending final assessment.**

HEADNOTE

Where a recovery certificate is challenged and the notice of provisional assessment is furnished only at the hearing, the consumer is to be given time to file objections to that notice. Those objections are to be considered and disposed of, and until then the recovery citation shall not be pressed and shall abide the final assessment. The Court did not decide whether U.P. Electricity Supply Code, 2005 procedure had been followed.

FACTUAL SUMMARY

Gyan Chand Bind invoked Article 226 to question a recovery certificate issued against him, pleading that the procedure prescribed under the U.P. Electricity Supply Code, 2005 had not been followed. At the hearing, counsel for the Electricity Department produced an inspection report and a notice of provisional assessment dated 21 May 2019, and supplied a copy to the petitioner's counsel in court. The Division Bench treated the petitioner as having received that notice only that day.

HOLDING-UNITS

HOLDING-UNIT · EA2003::126

provisional assessment — objections and stay of recovery

HOLDING

Where a recovery certificate is challenged and the notice of provisional assessment is supplied only at the hearing, the consumer is to be given an opportunity to file objections to that notice; if filed, the objections shall be considered and disposed of, and until that disposal the recovery citation shall not be pressed into service and shall abide the final assessment. ¶ 1

PRINCIPLE TAGS

provisional-assessment-objection-before-recovery

The Court did not decide the recovery on merits after the provisional-assessment notice was supplied in court. It directed the petitioner to file objections within three weeks, required those objections to be disposed of within four weeks if filed, and kept the recovery citation in abeyance until final assessment. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PROCEDURE PRESCRIBED UNDER THE U.P. ELECTRICITY SUPPLY CODE, 2005 HAD BEEN FOLLOWED BEFORE THE RECOVERY CERTIFICATE WAS ISSUED

The Court proceeded on the inspection report and provisional-assessment notice produced at the hearing and relegated the petitioner to objections, without examining the Supply Code challenge. ¶ 1